

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 24-19

PELTON INTERACTIVE, INC.
Complainant

vs.

FLEXPORT INTERNATIONAL LLC
Respondent

**RESPONDENT'S FIRST MOTION FOR MODIFICATION OF THE
SCHEDULING ORDER**

EXPEDITED RELIEF REQUESTED

COMES NOW, Respondent, Flexport International LLC, by and through its undersigned counsel and files this, its First Motion for Modification of the Scheduling Order and in support thereof states as follows:

Respondent seeks a brief extension of some of the deadlines in this matter: a 2-week extension for the parties to conduct expert depositions and a 30-day extension for the parties to submit their respective briefs.

With respect to the extension of the expert depositions, Flexport seeks a brief extension to enable it to depose only one of the three experts designated in this matter by Peloton. Unfortunately, counsels for Flexport have scheduling conflicts which would severely restrict their ability to take this single deposition – which it proposes to take place by May 28 or May 29, 2025 – merely 10 days after the current deadline.

With respect to the briefs, the 30-day extension is requested because the current deadline

of Flexport's Response Brief of July 14, 2025, conflicts with a 2 – 3 week trial that counsels for Flexport must attend – in Chicago, Illinois (counsels reside in Miami, Florida). The case concerns an alleged catastrophic personal injury involving two plaintiffs, eight defendants, and over two dozen experts, with case styled *Kierra Sword v. AMZ Trucking, Inc., et al*, with Case No. 2023 L 6775, in the Circuit Court of Cook County, Illinois. Unfortunately, there is less than zero chance of the case being postponed. Mediation took place on April 22, 2025 and unfortunately there is very little chance of the case being resolved prior to trial.

As such, with the utmost respect, and with great reluctance, the undersigned must request in good faith that the briefing be extended to afford Flexport the time needed to respond to what will certainly be an extensive brief filed by Peloton as this matter alleges over a thousand transactions at issue. This is the first request for an extension by Flexport and submits that good cause exists for same.

The proposed deadlines are as follows

Event	Current Deadline	Proposed Deadline ¹
Expert Depositions Completed	May 19, 2025	June 4, 2025
Complainant's initial brief, proposed findings of fact, and appendix	June 16, 2025	July 16, 2025
Respondent's opposition brief,	July 14, 2025	August 13, 2025
Complainant's reply brief and responses to proposed findings of fact	July 28, 2025	August 27, 2025

MEET AND CONFER CERTIFICATION

The undersigned certifies that he has met and conferred with counsel for Peloton regarding the relief requested herein. Peloton's counsel advised that Peloton "takes no position" regarding the requested relief.

CONCLUSION

For the foregoing reasons, Flexport respectfully submits that good cause exists for extension of the deadlines in the Scheduling Order. Flexport accordingly requests that its motion to extend the Scheduling Order be granted.

Given the upcoming deadline, Flexport respectfully requests that the instant motion be considered on an expedited basis.

Dated May 8, 2025

Respectfully submitted,

SPECTOR RUBIN, P.A.

By: /s/ Robert Borak
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Flexport International LLC

CERTIFICATE OF SERVICE

I **HEREBY CERTIFY** that a true and correct copy of the forgoing was served on May 8, 2025, via electronic mail, which shall notify all parties of record on this matter.

By: /s/ Robert Borak
Robert M. Borak, Esq.